

ACTION NO. _____

**IN THE 7TH JUDICIAL CIRCUIT
OF THE STATE OF CHESAPEAKE
IN AND FOR HARRISON COUNTY**

THE PEOPLE OF HARRISON COUNTY,
Plaintiff,

In re: **GANG / GROUP ID**

SEALED PETITION FOR DETERMINATION OF PROBABLE CAUSE

NOW COMES the People of Harrison County, by and through their Assistant District Attorney, **NAME**, and humbly requests this Court that under Section 4 of CO. 2-37 also known as the “SHIELD Ordinance” that there be made a finding of probable cause and confirmation of intent of criminal behavior as it relates to the above aforementioned organization.

FOUNDATIONAL ARGUMENTS

1. This Court is empowered by CO. 2-37, recently signed and enacted into law by the County Executive, to declare an organization to be one of a criminal nature;
2. This Court’s determination have severe consequences for the employment, work, and benefit of those who may allegedly be apart of these organizations;
3. This statute was enacted in the backdrop of a massive crime surge throughout Harrison County;
4. The remedy provided by the legislators who serve the People, the County Council, is the declaration, collection, and punishment of organized crime;

REQUIREMENTS UNDER STATUTE

5. The Court must factor numerous requirements under this new statute before a determination must be made, namely that:
 - a. Section 3, Clause F:
 - i. The District Attorney's Office shall investigate any allegations of a criminal organization’s existence before designation; such designation

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must be accompanied by an investigatory report detailing the findings & relevant information.

b. Section 4, Clause A:

- i. When an investigative body finds sufficient facts and evidence that compels the District Attorney to designate an organization, the District Attorney's Office may proceed with a sealed petition to the courts requesting for a determination of probable cause and confirmation of the organizations intent of criminal behaviour within the county of Harrison.
6. The Court must regard these two statutes as the prerequisites for the proper finding of determination of probable cause;
7. It is the belief of the District Attorney's Office that it is also a matter of state and local security;
8. Any interest in the preservation of liberties is outweighed by the manifest evil and wrongdoing perpetrated by criminal organizations, hence the sealed nature of these proceedings;

GANG IS A CRIMINAL ORGANIZATION

9. In the interest of the judicial economy, the People shall proffer a brief summary of the above organization for the Court, notwithstanding the attached investigative report to satisfy Section 3 (F);

10. DETAILS

PRONGS FOR A CRIMINAL ORGANIZATION; AS PROFERRED BY THE PEOPLE

11. Generally speaking, determining whether an organization is criminal in nature is a multi-pronged question. It is the People's position that we do not intend to rely on case law for this determination, but rather make it a matter of the Court to decide exclusively;
12. It is the People's contention that the Court can make a determination on whether an organization is criminal in nature based on the following prongs:
 - a. Does the organization have criminal intent?

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- i. In that, does the organization's structure and outward appearance or interactions with the community signal it is a law-abiding organization or one that intends to cause havoc?
 - b. Does the organization have a standardized uniform of dress, and if so, is it militaristic in nature?
 - i. In that, while lawful organizations and commercial enterprises may employ a uniform, they do not employ a quasi-military uniform with camouflage patterns or plate carriers, which are typical of *armed* organizations such as the militia.
 - c. What does a reasonable person, based on the totality of the information and one's knowledge of the organization, believe the organization to be?
 - i. In that, would an unattached person who is provided basic information on this organizations activities believe it to be a lawful organization that operates within the bounds of law, or would they believe that it is *likely* to operate outside the bounds of law?
 - d. Does the organization operate within the confines of law, expressly or not?
 - i. In that, does the organization generate revenue for lawful purposes and utilize such revenue in a lawful way, in addition to whether the *majority public acts* of the organization are lawful in nature, ie, are the self-identified members of said organization constantly engaging in unlawful practices leading to their arrests in-game?
13. While these prongs are not exclusive, they do give a good idea on how one can approach and identify what a criminal organization is;
14. Some prongs may seem on their face contradicting, such as 14 (a) and 14 (d), but such is rather simple: I could hypothetically operate a lawfully registered commercial enterprise but mask my intentions to be a front for criminal activities, so while my organization may operate within the confines of law, it does have criminal intent, but in any circumstance these are not in totality;

GANG SATISFIES THOSE PRONGS

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15. Based on the following representations, it is the belief of the People that the **GANG** satisfies our proposed prongs:

- a. **GANG** has criminal intent and nature;
 - i. **HOW**
- b. **GANG** has a standardized uniform of dress that is militaristic in nature;
 - i. **HOW**
- c. **GANG** can reasonably be discerned as a criminal organization based on the totality of the circumstances;
 - i. **HOW**
- d. **GANG** operates expressly outside the confines of law;
 - i. **HOW**

16. The People also tender the investigative report for consideration by this Court.

CONCLUSION

WHEREFORE, the People of Harrison County, submits and represents to this Court that the above organization is deemed to be a criminal organization and that pursuant to enacted statute that this Court find probable cause and confirmation of the organizations intent of criminal behavior.

Dated: **DATE**

Respectfully submitted:

name

NAME

Counsel of Record
District Attorney's Office